

Part 5

Exemptions

41. Exemptions

- (1) The following shall be exempt from the provisions of this Ordinance—
- (a) buildings belonging to the Government;
 - (aa) subject to section 18(2) and (3) of the Housing Ordinance (Cap. 283), buildings upon any land vested in the Housing Authority or over which the Housing Authority has control and management; *(Added 23 of 1973 s. 36. Amended 33 of 1978 s. 13)*
 - (b) buildings upon any land vested in any person on behalf of the Hong Kong Garrison; *(Amended 2 of 2012 s. 3)*
 - (ba) any land vested in the Housing Authority or in any person on behalf of the Hong Kong Garrison, and any unleased land within the meaning of the Land (Miscellaneous Provisions) Ordinance (Cap. 28) other than such unleased land in respect of which a person is, under the terms of a Government lease, under an obligation to maintain; *(Added 72 of 1980 s. 16. Amended 2 of 2012 s. 3)*
 - (c) any street or access road vested in and maintained by the Government: *(Added 44 of 1959 s. 21)*

Provided that the provisions of this Ordinance relating to projections over or upon any portion of any street whether or not on land held under lease from the Government and to hoardings shall apply to all buildings. *(Amended 23 of 1969 s. 10; 29 of 1998 s. 26)*

- (1A) Nothing in subsection (1) shall exempt an owner of any building that is not a building referred to in paragraph (a), (aa) or (b) of that subsection from the operation of section 27C merely by reason of the fact that any water pipe, drain or sewer of the building is laid in, on or under—
- (a) any land vested in the Housing Authority or in any person on behalf of the Hong Kong Garrison; (*Amended 2 of 2012 s. 3*)
 - (b) any unleased land within the meaning of the Land (Miscellaneous Provisions) Ordinance (Cap. 28); or (*Amended 29 of 1998 s. 26*)
 - (c) any street or access road vested in and maintained by the Government. (*Added 55 of 1996 s. 10. Amended 29 of 1998 s. 26*)
- (2) Save as otherwise provided, no alteration shall be required to any existing building, private street or access road erected or constructed in accordance with the laws of Hong Kong. (*Replaced 44 of 1959 s. 21. Amended 43 of 1993 s. 11; 62 of 2000 s. 3*)
- (3) Building works (other than drainage works, ground investigation in the scheduled areas, site formation works or minor works) in any building are exempt from sections 4, 9, 9AA, 14(1) and 21 if the works do not involve the structure of the building. (*Replaced 20 of 2008 s. 29*)
- (3A) (*Repealed 20 of 2008 s. 29*)
- (3B) Designated exempted works that are prescribed in the regulations are exempt from sections 4, 9, 9AA, 14(1) and 21. (*Added 20 of 2008 s. 29*)
- (3C) Drainage works (other than minor works) in any building are exempt from sections 4, 9 and 14(1) if the works do not involve—

- (a) the structure of the building;
 - (b) any drain or sewer into which there is discharged, or into which it is intended to discharge, any trade effluent, chemical refuse, waste steam, petroleum spirit, carbide of calcium, acid, grease or oil;
 - (c) altering any manhole at which any drain or sewer from the building is connected with a public sewer;
 - (d) altering any septic tank or cesspool;
 - (e) making a direct or indirect connection of an additional drain or sewer to a septic tank or cesspool; or
 - (f) underground drainage works in a scheduled area that is described as area number 3 in the Schedule 5. *(Added 20 of 2008 s. 29)*
- (3D) Nothing in subsections (3), (3B) and (3C) permits any building works or drainage works to be carried out in contravention of any regulations. *(Added 20 of 2008 s. 29)*
- (4) The provisions of this Ordinance shall not apply to any temporary building to be kept or used as a place of public entertainment. *(Added 7 of 1970 s. 7)*

(Amended E.R. 2 of 2012)

42. Building Authority's powers of exemption

- (1) Where in the opinion of the Building Authority special circumstances render it desirable he may, on receipt of an application therefor and upon payment of the prescribed fee, permit by notice in writing modifications of the provisions of this Ordinance. *(Amended 44 of 1959 s. 22; 68 of 1993 s. 20)*
- (2) Every application for an exemption under this section shall be in the specified form, and shall be considered on its own merits by the Building Authority who shall not be required to

take account of exemptions granted in the past. (*Amended 44 of 1959 s. 22; 68 of 1993 s. 20*)

- (3) A permit granted under this section may contain such conditions as the Building Authority shall deem necessary.
 - (4) No such permit shall be granted to the prejudice of the standard of structural stability and public health established from time to time by regulations.
 - (5) This section shall not apply to section 14. (*Replaced 44 of 1959 s. 22*)
 - (6) The breach of or failure to perform or to consent to any condition attached to a modification or exemption granted under this section shall render such modification or exemption invalid, and thereupon the purported grant of such modification or exemption shall be no defence to any proceedings for non-compliance with the provisions of this Ordinance.
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